

		<u>Fourth Cause of Action – Account Stated:</u> “The essential elements of an account stated are: (1) previous transactions between the parties establishing the relationship of debtor and creditor; (2) an agreement between the parties, express or implied, on the amount due from the debtor to the creditor; (3) a promise by the debtor, express or implied, to pay the amount due.” (<i>Leighton v. Forster</i> (2017) 8 Cal.App.5th 467, 491.) Here, Plaintiff alleges this claim in the alternative to its contract claim on the grounds that Defendant’s manager paid 29 prior invoices without objection before Defendant began paying only 50% of the invoiced amount. (¶¶ 74-78.) Defendant argues the Complaint fails to plead an agreement as to the amount due. Although there is now a dispute regarding the amount due, Plaintiff alleges that there was an implied agreement as to the amount due based on the parties’ conduct, which is sufficient at the pleading stage.
10	25-01458588 <i>Sommerfield vs. Cushman & Wakefield U.S., Inc.</i>	1) Motion to Compel Answers to Form Interrogatories 2) Motion to Compel Answers to Special Interrogatories 3) Motion to Compel Further Responses to Form Interrogatories 4) Motion to Compel Further Responses to Special Interrogatories 5) Motion to Compel Production 6) Motion to Compel Production MOTIONS 1-3 Plaintiff Jean Sommmfield’s motions to compel defendant Bank of America, N.A. to provide further responses to Plaintiff’s Special Interrogatories, Set One; Form Interrogatories, Set One; and Requests for Production, Set One (ROA Nos. 69, 74, 79) are DENIED. Plaintiff’s motions are untimely. “Unless notice of this motion is given within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the demanding party and the responding party have agreed in writing, the demanding party waives any right to compel a further response to the demand.” (Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c).) The propounding party waives the right to compel further responses by delaying the motion beyond the 45-day deadline. (Code Civ. Proc., §§ 2030.300, subd. (c); 2031.310, subd. (c); see <i>Vidal Sassoon, Inc. v. Sup.Ct. (Halpern)</i> (1983) 147 Cal.App.3d 681, 683 [holding the deadlines for motions to compel further responses are “mandatory and the court may not entertain a belated motion to compel.”]; <i>Golf & Tennis Pro Shop, Inc. v. Sup.Ct. (Frye)</i> (2022) 84 Cal.App.5th 127, 136-137 [motion filed 1 day late was untimely].)

On 12/22/25, after receiving several extensions, Defendant served responses to Plaintiff's Special Interrogatories, Set One ("SROG"); Form Interrogatories, Set One ("FROG"); and Requests for Production, Set One ("RFP"). (Wolf Decls., ¶ 4.) The responses consisted only of objections. (Wolf Decls., ¶ 4.) Plaintiff does not claim the responses were untimely.

Citing *Golf & Tennis Pro Shop, Inc.*, Plaintiff contends the motions are timely because the 45-day clock did not begin since Defendant served unverified responses. In *Golf & Tennis Pro Shop, Inc.*, the court held that the service of unverified responses which consists of both substantive responses and objections did not trigger 45-day time limit to bring motion to compel further responses even where the motion challenges only the objections. (*Id.* at pp. 135-136.) However, the court left open the question whether time starts to run where unverified responses contain nothing but objections. (*Id.* at p. 136 fn. 5.)

Here, Defendant's responses contained nothing but objections. Objection-only responses do not require verifications. (See Code Civ. Proc., §§ 2030.250, subds. (a), (c), 2031.250, subds. (a), (c); *Blue Ridge Ins. Co. v. Sup.Ct. (Kippen)* (1988) 202 Cal.App.3d 339, 344 [responses consisting entirely of objections need not be verified].) Thus,, the 45-day clock began to run when Defendant served its responses. Therefore, Plaintiff's deadline to file the instant motions was 2/9/26 (i.e., 45-days after 12/22/25, plus two court days for electronic service). (See Code Civ. Proc., §1013, 1010.6, subd. (a)(3).) Plaintiff did not file these motions until 5/7/26.

Plaintiff alternatively argues the motions are timely because Defendant provided Plaintiff with open extensions to file the necessary motions. However, the Code does not allow for open ended extensions. Rather, the Code requires the parties to agree, in writing, to a "specific later date." (See Code Civ. Proc., §§ 2030.300, subd. (c), 2031.310, subd. (c) [allowing an extension of the 45-day deadline "on or before any *specific later date* to which the demanding party and the responding party have agreed in writing" (emphasis added)].) This language in the statute would be superfluous if the parties could agree to open ended extensions. Here, the parties did not agree to extend the 45-day deadline to a "specific later date."

Therefore, the motions are denied.

MOTION 4

Plaintiff Jean Sommfield's unopposed motion to compel defendant Cushman & Wakefield U.S., Inc. to provide responses to Plaintiff Form Interrogatories, Set One; and for monetary sanctions (ROA No. 107) is GRANTED.

A party's failure to timely respond to interrogatories results in a waiver of any objections to the requests. (Code Civ. Proc., § 2030.290, subd.

(a.) If a party to whom interrogatories fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subd. (b).) The motion has no deadline nor a requirement to meet and confer before filing the motion. The court “shall” impose a monetary sanction against the losing party on a motion to compel unless it finds that party acted “with substantial justification” or other circumstances render the sanction “unjust.” (Code Civ. Proc., § 2030.290, subd. (c).)

Here, Plaintiff properly served Form Interrogatories, Set One, on Defendant on 6/4/25. (Wolf Decl., ¶ 2.) Defendant never served responses despite promises to “have the discovery issues resolved.” (Wolf, Decl., ¶¶ 6-7.)

Defendant Cushman & Wakefield is ORDERED to provide verified responses, without objection, to Plaintiff’s Form Interrogatories, Set One, within 20 days.

Defendant is ORDERED to pay \$1,750 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2030.290, subd. (c) and Cal. Rules of Court, rule 3.1348.)

Plaintiff to give notice.

MOTION 5

Plaintiff Jean Sommfield’s unopposed motion to compel defendant Cushman & Wakefield U.S., Inc. to provide responses to Plaintiff’s Special Interrogatories, Set One; and for monetary sanctions (ROA No. 112) is GRANTED.

A party’s failure to timely respond to interrogatories results in a waiver of any objections to the requests. (Code Civ. Proc., § 2030.290, subd. (a).) If a party to whom interrogatories fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (Code Civ. Proc., § 2030.290, subd. (b).) The motion has no deadline nor a requirement to meet and confer before filing the motion. The court “shall” impose a monetary sanction against the losing party on a motion to compel unless it finds that party acted “with substantial justification” or other circumstances render the sanction “unjust.” (Code Civ. Proc., § 2030.290, subd. (c).)

Here, Plaintiff properly served Form Interrogatories, Set One, on Defendant on 6/4/25. (Wolf Decl., ¶ 2.) Defendant never served responses despite promises to “have the discovery issues resolved.” (Wolf, Decl., ¶¶ 6-7.)

Defendant Cushman & Wakefield is ORDERED to provide verified responses, without objection, to Plaintiff’s Special Interrogatories, Set One, within 20 days.

		Defendant is ORDERED to pay \$1,250 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2030.290, subd. (c) and Cal. Rules of Court, rule 3.1348.) Plaintiff to give notice. MOTION 6 Plaintiff Jean Sommfield’s unopposed motion to compel defendant Cushman & Wakefield U.S., Inc. to provide responses to Plaintiff’s Requests for Production of Documents, Set One; and for monetary sanctions (ROA No. 117) is GRANTED. The party who fails to respond waives any objection to the demand, including one based on privilege or on the protection for work product under Section 2018(a) of the Code of Civil Procedure. (Code Civ. Proc. § 2031.300, subd. (a).) When the party to whom the demand is directed fails to respond, the demanding party may move for an Order compelling a response and for monetary sanctions. (Code Civ. Proc., § 2031. 300, subd. (b).) The motion has no deadline nor a requirement to meet and confer before filing the motion. The court “shall” impose a monetary sanction against the losing party on a motion to compel unless it finds that party acted “with substantial justification” or other circumstances render the sanction “unjust.” (Code Civ. Proc., § 2031.300, subd. (c).) Here, Plaintiff properly served Requests for Production of Documents, Set One, on Defendant on 6/4/25. (Wolf Decl., ¶ 2.) Defendant never served responses despite promises to “have the discovery issues resolved.” (Wolf, Decl., ¶¶ 6-7.) Defendant Cushman & Wakefield is ORDERED to provide verified responses, without objection, to Plaintiff’s Requests for Production of Documents, Set One, along with all responsive documents, within 20 days. Defendant is ORDERED to pay \$1,250 in sanctions to Plaintiff within 20 days. (See Code Civ. Proc., §§ 2023.010, 2023.030, 2031.310, subd. (c) and Cal. Rules of Court, rule 3.1348) Plaintiff to give notice.
11	26-01575242 <i>Yes Online Inc. vs. ProTab Laboratories</i>	Order to Show Cause re: Preliminary Injunction The Order to Show Cause Re: Preliminary Injunction is discharged. The temporary protective order is dissolved and the Court, in its discretion, declines to enter a preliminary injunction. Plaintiff has failed to provide admissible evidence of any harm beyond the pecuniary losses sought in the Complaint. Injunctions are rarely granted where damages provide an adequate remedy. (See <i>Thayer Plymouth Ctr., Inc. v. Chrysler Motors Corp.</i>